

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

PRC APPEAL NO. 19/2026

M/S Chandio Construction Company
Through its Authorized Representative

..... Appellant

VERSUS

1. Secretary Energy Department, Government of Baluchistan,
2. Director General South (Procuring Agency) Usta Muhammad.
3. Chairman Grievance Redressal Committee

..... Respondents

Quorum

1. Mr. Habib Ur Rehman Jamot Chairman PRC
2. Mr. Mubashir Ali Khan (FCIPS) Member PRC (Author)
3. Engr. Junaid Shah Member PRC
4. Engr. Iftikhar Ahmed Mir.....Technical member PRC
5. Syed Muheebullah AdvocatePrivate Member PRC

DECISION

Dated: 18-02-2026

1. The instant appeal has been filed by the Appellant under Rule 56-A of the Baluchistan Public Procurement Rules, 2014, challenging the Technical Evaluation Report issued in respect of TSE No. 252609875643 for "Provision and Installation of Solar Street Lights at Firdous Colony M/C Usta Muhammad" (Estimated Cost: PKR 10,000,000/-)
2. It is the Appellant's case that the evaluation criteria stipulated by the Procuring Agency were manifestly unreasonable, unfairly restrictive and lacking clarity. In particular, the Appellant challenges the requirement for work orders and completion certificates amounting to 100% of the project's total estimated cost of PKR 10,000,000/-, contending that such a condition is excessively onerous, operates as a de facto bar to competition and contravenes the principles of fair and open procurement. The Appellant also underscores the attendance procedural irregularity, noting that the bid

submission on October 21, 2025, occurred without any formal attendance record of the participating bidders, thereby casting doubt on the transparency and due process of the proceedings.

3. The Appellant's bid was declared non-responsive on the ground of not having sufficient works experience of similar nature in a specific area. The Appellant contends otherwise, maintaining that his bid was accompanied by comprehensive documentary evidence of extensive relevant experience, which the Respondent Procuring Agency failed to consider, and that such omission was neither inadvertent nor justified.
4. The Respondent 2 proceeded to open the financial bids on December 22, 2025. The Appellant contends that both the basis for his disqualification and the subsequent opening of financial bids are in contravention of the provisions of the Balochistan Public Procurement Rules, 2014, as well as the prescribed guidelines promulgated by the Balochistan Public Procurement Regulatory Authority on 28 August 2025.
5. Being aggrieved by the evaluation outcome, the Appellant invoked the grievance redressal mechanism under Rule 56 of the BPP Rules by approaching the Procuring Agency's Grievance Redressal Committee (GRC) on December 26, 2025. The GRC, however, failed to discharge its statutory duty by remaining silent and not issuing or communicating any decision within the timeframe stipulated by law and not even till date. Consequently, the Appellant, asserting compliance with the eligibility requirements, has preferred the instant Appeal before this Committee for appropriate relief, seeking, inter alia, an interim order to restrain Respondent No. 2 from proceeding with the award of the contract.
6. The Appellant seeks declaration of the procurement as flawed while setting aside of the impugned Technical Evaluation Report and suspension of all further proceedings till final decision of the instant Appeal.
7. Upon admission of the Appeal, this Committee issued notices to the Respondents, directing them to enter appearance, file written replies and produce the complete record pertaining to the impugned tender proceedings.
8. Respondents No. 2 and 3 appeared and contested the appeal verbally on both factual and legal grounds. They submitted that the Appellant failed to meet the basic eligibility criteria expressly stipulated in the bidding document. The Respondents contended that

the Appellant was rightly declared non-responsive at the eligibility assessment due to non-fulfillment of mandatory requirements, a decision that was reached unanimously by the Technical Evaluation Committee on the basis of documentary evidence. It was further submitted that the Appellant failed to furnish proof of having executed three similar assignments as required. Accordingly, Respondents No. 2 and 3 pray that the appeal be dismissed.

9. The following primary issues arise for determination from the pleadings of the parties:

(i) Whether the Appellant approached the Procuring Agency for seeking clarification regarding a perceived unfair bidding condition?

(ii) Whether the Appellant possesses the requisite work experience of similar nature?

10. The Committee notes that the Tender Document of the case at hand explicitly require bidders to possess experience in works of similar nature as mandatory eligibility factor, which was essential for determining technical responsiveness. With respect to the first issue, *"whether the Appellant approached the Procuring Agency seeking clarification regarding a perceived unfair bidding condition."* Rule 32 of the BPP Rules, provides a clear mechanism for bidders to challenge any perceived irregularities in the bidding documents before bid submission. Had the Appellant believed the said requirement to be restrictive or non-compliant with guidelines, he was obligated to raise a formal objection at least five days prior to the bid opening date. His failure to do so, and his subsequent attempt to challenge the requirement only after his bid was rejected, amounts to an impermissible afterthought that this Committee cannot entertain.

11. With respect to the second issue, *"whether the Appellant possesses the requisite experience of a similar nature"* the Committee called upon the Appellant to produce, during the course of the hearing, the completion certificates relied upon in support of his claimed experience. The Appellant was afforded full opportunity to place before the Committee any documentary evidence substantiating his claim of having requisite experience.

12. A further contention was raised by Respondent No. 2 that the Appellant had accepted the evaluation outcome by submitting a written request to the Procuring Agency seeking release of his bid security, which was duly accepted and his Bid security was released. Respondent No. 2 argued that this constituted acceptance of the disqualification. The Respondent 2 was asked by the Committee to produce the said letter.
13. The Appellant, while acknowledging the existence of a composite letter requesting release of bid securities in multiple tenders, disputed that the subject Bid Security letter did not pertain to the present procurement. He maintained that the letter did not seek release of bid security against TSE No. 252609875803, rather it requested for release of securities of other Tenders. Consequently, the Appellant was asked by the Committee to produce the said letter.
14. Unfortunately, in the days subsequent to the aforementioned proceedings, the law and order situation in the province deteriorated to an unprecedented level. The prevailing environment of heightened insecurity severely impaired the ability of this Committee to convene hearings in a timely manner. The disruption, however, was neither anticipated nor within the control of any party or the Committee itself and it necessitated an inevitable deferment of the scheduled proceedings.
15. During this period, this Committee received and considered requests for adjournment and extension of hearing dates submitted by both the Appellant and the Respondents. Mindful of the extraordinary circumstances and the principle of ensuring fair and unhindered access to justice, the Committee allowed these requests despite the consequent compromise upon the timeline stipulated under the Rules for the announcement of the final decision. The Committee remained cognizant that adherence to procedural timelines, while sacrosanct under ordinary circumstances, had to be balanced against the overriding imperative of conducting proceedings in a secure, fair, and transparent manner.
16. It is, however, placed on record that the Committee, throughout this period of disruption, consistently prioritized the eventual adjudication of the lis on its merits. All extensions were granted with the explicit understanding that parties would cooperate in expeditiously concluding the proceedings once the law and order situation permitted

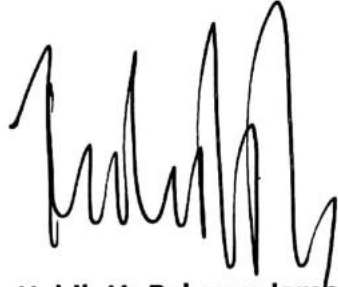
the resumption of normal functioning. The delay, though regrettable, was neither occasioned by any lapse on the part of this Committee nor by the dilatory conduct of any party; rather, it was an unfortunate consequence of forces entirely extraneous to the adjudicatory process. The Committee now proceeds to render its findings based on the record as finally augmented by the parties pursuant to the directions recorded in the preceding paragraphs.

17. As the law and order situation in the province showed signs of stabilization, Communications were issued to all parties, scheduling fresh hearings. Both the Appellant and the Respondents were afforded full opportunity to present their cases. The Committee remained mindful of the delay already caused and therefore prioritized the expeditious conclusion of the matter.
18. The Appellant having afforded opportunity to produce the original completion certificates, failed to satisfy the Committee regarding the existence of such documents, thus could not establish his experiential competence as required in the bidding eligibility criteria.
19. Regarding the contention that the CRC failed to decide the complaint, the record shows that the CRC met on 08.01.2026 and decided the complaint on 13.01.2026 in favor of the procuring agency. The Appellant's assertion that the CRC remained silent is therefore incorrect.
20. The Appellant could not submit the request for bid security release for other Tenders nor the Respondent could come up with the Applicant's bid security release request of the instant Tender.
21. In light of the above, the Committee finds that the Appellant's bid was rightly declared non-responsive for failing to meet the mandatory eligibility criteria. No procedural illegality, violation of rules, or mala fide has been established.

ORDER

For the foregoing reasons, this appeal is dismissed in the following terms:

1. The impugned Technical Evaluation Report is upheld.
2. The Respondents are at liberty to proceed with the contract award in accordance with law.



Habib Ur Rehman Jamot

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

18/02/2026



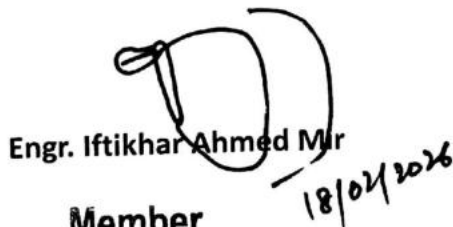
Mubashir Ali Khan (FCIPS)

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